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Provision of March 13, 2025
Register of provisions
n. 138 of March 13, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, president, Prof.
Ginevra Cerrina Feroni, vice president, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Counsel Fabio Mattei, secretary general;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC (General Data Protection Regulation, hereinafter "Regulation");

HAVING REGARD to the Code regarding the protection of personal data
(legislative decree June 30, 2003, n. 196), as
amended by legislative decree August 10, 2018 n. 101, containing
provisions for the adaptation of the national
legal system to the aforementioned Regulation (hereinafter
"Code");

HAVING REGARD to the documentation on file;

HAVING REGARD to the observations made by the secretary
general pursuant to Article 15 of the Guarantor's
Regulation n. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISED

1. THE INSTRUCTIONAL ACTIVITY CARRIED OUT

With the report of December 30, 2022, Ms.
XX complained about receiving an unwanted
communication via WhatsApp from Casatua S.r.l.
(hereinafter "Casatua" and "Company") which, in its response
of April 1, 2023, to the request to know
the origin of the personal data made
by the interested party, indicated Realmaps S.r.l. (also
hereinafter "Realmaps" and "supplier") as
the entity from which it would have acquired the same data
based on a regular agency contract. In
this response, the Company also stated
that it had provided the operator who would have contacted
the interested party with "specific instructions [on]
the procedure to be adopted in the initial approach"
consisting of the "request to receive the free,
specific, and informed consent of the user for the
purposes at the first contact." The company Realmaps was
subject to a separate investigation, conducted
in April 2024, which allowed for the identification of various
issues regarding the processing of personal data

intended for real estate agencies for marketing purposes.

Considering that, from what emerged in the documents, Casatua is included among the real estate agencies to which Realmaps would have provided the data for promotional purposes, on May 14, 2024, the Office formulated a request for information (ref. prot. n. 58467/24), pursuant to Article 157 of the Code, mainly aimed at clarifying the relationships with the aforementioned supplier and knowing the compliance measures in the field of personal data protection that the Company has implemented regarding the acquired lists. In a communication dated May 30, 2024, the Company responded to the aforementioned request for information, attaching the data supply contract signed with Realmaps on September 30, 2022. In this response, the Company, referring to the content of the aforementioned contract, specified the public nature of the sources from which the acquired data would have been obtained as well as the existence of an explicit "consent to receive advertising information" that would have legitimized the processing. Of the 5,000 accounts acquired from Realmaps, 2,000 were contacted by Casatua. The Company also provided the calling script used for commercial contacts and stated that it had not verified the accounts acquired from Realmaps in the Public Opposition Register (so-called RPO). It finally produced the "Request for Access to Data" form as well as the "Model for the Exercise of the Rights of the Data Subject" recently created and used "in training to instruct internal operators to provide the contacted user with the necessary information to facilitate the request for information on the processing of their personal data, as well as to exercise their rights [...]".

2. THE CONTESTATION OF VIOLATIONS

By note dated June 13, 2024 (prot. n. 0071999/24), the Company was informed of the initiation of the procedure, pursuant to Article 166, paragraph 5, of the Code, for the adoption of any measures referred to in Article 58, paragraph 2, of the Regulation, recognizing Casatua's responsibility for the alleged violation of the following provisions of the Regulation:

- Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 13, 14 of the Regulation and Article 130 of the Code for failing to verify or document the legality of the data acquired from the supplier (information and consent);
- Article 130, paragraphs 3 and 3 bis, of the Code due to the failure to verify the accounts to be contacted in the Public Opposition Register;
- Articles 12 and 15 of the Regulation as the response to requests from data subjects regarding

the processing of their personal data is contingent on the necessary consultation with Realmaps, which holds such information, resulting in a potential delay in fulfilling the aforementioned requests and a lack of complete satisfaction on the part of the requester;

- Articles 5, paragraph 2, 24 and 25 of the Regulation for failing to demonstrate the compliance measures implemented in the field of personal data protection.

3. DEFENSIVE OBSERVATIONS AND LEGAL ASSESSMENTS BY THE AUTHORITY

On July 12, 2024, Casatua submitted its defensive memoranda in which it requested the archiving of the proceedings initiated against him. The Company represented that it had started the "collaboration with [...] Realmaps" in 2022, making "legitimate reliance on the correctness of [its] actions" and that it learned, "only following the report from the Interested Party and the confrontation with the Authority, [...] that such Supplier was operating in violation of the regulations regarding the protection of personal data."

Casatua illustrated the initiatives undertaken to make the processing compliant with the regulations, including the designation of the DPO and the related communication to the Authority of its contacts on June 27, 2024. Furthermore, the Company, confirming that it had contacted 2,000 users out of the 5,000 records provided by Realmaps, stated that it had interrupted the processing "immediately following the report received." It also asserted that it had "terminated the commercial relationships with Realmaps and did not proceed with the request for further supplies [...]". Finally, it emphasized the isolated nature of the conduct that involved sending the interested party "a single message via [...] WhatsApp," after which verification activities on the source of the data were conducted, involving Realmaps.

In the hearing on July 22, 2024, the Company reiterated much of what was stated in the defense memorandum, also representing that it had scheduled a training course for its employees to further strengthen its compliance with the regulations regarding the protection of personal data; it also introduced in the "privacy documentation" to be signed by the interested parties a specific request for consent to processing "for future marketing purposes." Finally, it confirmed that it had deleted "all contacts from the list acquired from Realmaps, except for the data of the complainant to be used for its defense in administrative and, possibly, judicial proceedings."

Based on the statements made by the Company, for which the declarant is responsible pursuant to Article 168 of the Code, and considering the documentation produced in the defense phase, the following legal evaluations are formulated.

Casatua is configured as the data controller, pursuant to Article 4 of the Regulation, having concretely determined the purpose for which the processing was carried out (promotion of its services) and the telephone channel used for this purpose. The same Company is therefore directly responsible for both the obligations imposed by the regulations regarding the protection of personal data and the liability for the violations identified.

The activity carried out by Casatua through the sending of promotional messages about its services via WhatsApp occurred in the absence of the consent of the reporting party. It should be noted that the transmission of the promotional message via the electronic communication channel WhatsApp is subject to the prior informed consent of the interested parties. Therefore, given the promotional purpose highlighted above and the electronic means by which the communications were conveyed (specifically via WhatsApp, as in the case of the report, and phone calls with an operator, as can be inferred from the call script produced in response), a legitimate processing, according to what is provided for by Article 130 of the Code, would have required the free, specific, unequivocal, and informed consent of the interested parties (so-called opt-in), (ex Article 130, paragraphs 1 and 2 of the Code), or, in the case of phone calls, in the absence of an express refusal (so-called opt-out) that can be exercised by registering the number in the Public Registry of Oppositions (ex Article 130, paragraphs 3 and 3 bis of the Code). It follows that in the absence of such conditions, it is not possible

to carry out promotional communications even if the personal data are taken from public registers, lists, websites, acts, or documents known or knowable by anyone (see, in this regard, Guidelines on promotional activities and combating spam - July 4, 2013, provision no. 330, web doc no. 2542348, at www.gpdp.it).

From what emerged in the documents, it does not appear that Casatua, as the data controller, verified, and therefore proved, the provision of information to the interested parties by the original data controller who would have acquired the data, pursuant to Article 14 of the Regulation; similarly, it has not been proven whether the alleged consent for communication to third parties (including Casatua) for marketing purposes was granted by the interested parties, nor has it been verified whether such authorization met the requirements of freedom and specificity (as per Article 4, point 11, of the Regulation), with inevitable repercussions on the legitimacy of the promotional activity of the Company itself.

It should also be noted that the call script used by Casatua in the above promotional communications contains only the reason for the phone contact but does not allow the interested parties to know the most relevant aspects of the processing of personal data (nature, origin of the data, legal basis) and the methods for exercising the rights referred to in Articles 15 – 22 of the same Regulation.

Since there is no suitable information provided by the Company, nor has the acquisition of prior free and specific consent been proven, the processing in question appears to have been carried out in the absence of the legitimacy requirements for promotional activity.

Therefore, it must be considered that there has been a violation of Articles 5, paragraph 1, letter a), 6, paragraph 1, letter a), 7, 13, and 14 of the Regulation and Article 130 of the Code, not only in relation to the case referred to in the report but in the overall context of the processing carried out.

related to the data acquired from Realmaps (n. 5,000) of which 2,000 telephone numbers have been contacted.

2. This is in addition to the violation of Article 130, paragraphs 3 and 3 bis, of the Code in relation to Article 1, paragraph 12, of Law No. 5/2018, concerning the conduct by the Company of telemarketing activities without having consulted the Public Opposition Register (so-called RPO) on a monthly basis or in any case prior to each promotional campaign.

With reference to the further requests made by the Office regarding the treatments already carried out by the Company, which are relevant for the Authority's assessment, it has emerged that Casatua has adopted a procedure that is not functional to an adequate management of requests to exercise rights and to a timely fulfillment "without unjustified delay" of requests from data subjects (ex Article 12, paragraph 3, of the Regulation). In fact, the Company was required to engage with Realmaps, which holds information on the origin of the data and any consent for communication to third parties. This step with Realmaps was necessary to obtain information on the data but inevitably caused a significant distraction of time and a potential delay in satisfying the requests made. Therefore, it is deemed necessary to confirm the violation of Articles 12 and 15 of the Regulation.

The deletion of data transferred from Realmaps and the commendable measures implemented by the Company are actions carried out by Casatua only after the investigation initiated by the Authority and, therefore, do not allow for overcoming the objections raised in the notice of contestation, nor for reducing the degree of responsibility that the data controller must continuously exercise during processing activities. In the absence of adequate controls over the entire processing chain (from collection to the execution of the promotional campaign), the marketing activity is in violation of Articles 5, paragraph 2, and 24 of the Regulation, which frame the responsibilities of the data controller in a perspective of necessary enhancement of the principle of accountability aimed at demonstrating compliance with obligations in the field of personal data protection, also taking into account the principle of privacy by design (Article 25 of the Regulation).

It should be noted that even under the previous state legislation, but even more so today with the introduction of the aforementioned principles in the context of EU law, in no way can the provision of a contractual indemnity clause exempt the data controller from carrying out the necessary activities to demonstrate that the processing has been carried out in compliance with the principles of lawfulness,

transparency, and fairness from which the provisions on legal basis and information derive.

4. CONCLUSIONS

In light of the arguments set forth in point 3 of this provision, while acknowledging the initiatives taken by the Company following the Authority's contestation regarding treatments already carried out, the contested violations are deemed confirmed, and it is necessary to:

- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order Casatua, should it intend in the future to direct promotional activities towards telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, also through adequate sample checks, that personal data are processed in full compliance with the relevant provisions (prior acquisition of free, specific, unequivocal, documented, as well as informed consent from data subjects for the sending of commercial communications) (Articles 6, 7, and 14 of the Regulation);
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order, for the purposes of the information obligation under Article 13 of the Regulation, to provide data subjects with all the information therein required, updating the relevant call script;
- pursuant to Article 58, paragraph 2, letter d) of the Regulation, order the adoption of appropriate technical and organizational measures to facilitate the exercise of rights provided for by data protection legislation and to satisfy, without unjustified delay, the related requests, including the right to object that can be raised "at any time" by the data subject.

Finally, with regard to the treatments already carried out and considering the violations identified above, it is believed that the conditions exist for the application of an administrative monetary sanction pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation.

5. ORDER FOR THE APPLICATION OF THE ADMINISTRATIVE MONETARY SANCTION

Based on the above, various provisions of the Regulation and the Code related to connected treatments carried out by Casatua have been violated, for which it is necessary to apply Article 83, paragraph 3, of the Regulation, according to which, if, in relation to the same treatment or connected treatments, a data controller violates, with intent or negligence, various provisions of the Regulation, the total amount of the administrative monetary sanction does not exceed the amount specified for the most serious violation, with the consequent application of only the sanction provided for in Article 83, paragraph 5, of the Regulation.

For the purposes of quantifying the administrative sanction, the aforementioned Article 83, paragraph 5, in setting the maximum penalty at the sum of 20 million euros or, for enterprises, at 4% of the total worldwide annual turnover of the previous financial year if higher, specifies the methods for quantifying the aforementioned sanction which must "in any case [be]...

"effective, proportionate and dissuasive" (art. 83, par. 1, of the Regulation), identifying, for this purpose, a series of elements, listed in par. 2, to be evaluated when quantifying the related amount.

The circumstances to be considered, in this specific case, must take into account, in terms of aggravating factors:

1. the number of individuals involved in the processing for whom the Company was unable to prove the legality requirements for the commercial activity (such as, information and consent): 5,000 the total numbers acquired by Realmaps, of which 2,000 were subject to promotional contacts (art. 83, par. 2, lett. a of the Regulation);
2. the severity of the violations detected, particularly with regard to the absence of sample checks of the numbers to be contacted acquired from the supplier, the inadequate management of requests to exercise the rights of the data subjects, as well as the inadequacy of the information provided during the telephone contacts (art. 83, par. 2, lett. a of the Regulation);
3. the negligent nature of the conduct, since the rules for the protection of personal data were ignored by the data controller until the intervention of the Authority (art. 83, par. 2, lett. b of the Regulation);
4. the inconsistency of the Company's conduct with respect to the substantial regulatory activity of the

Authority in the field of marketing, particularly regarding the obligations of information and consent (art. 83, par. 2, lett. k of the Regulation).

As mitigating factors, it is considered possible to take into account:

1. the absence of previous proceedings initiated against the Company (art. 83, par. 2, lett. e of the Regulation);
2. the timely deletion of the lists acquired from Realmaps with which the Company has terminated the commercial relationship, as well as the adoption of corrective measures, some of which were initiated immediately after the request for information from the Office (art. 83, par. 2, lett. f of the Regulation);
3. the high degree of cooperation in the interaction with the supervisory Authority (art. 83, par. 2, lett. f of the Regulation);
4. the nature of the data processed, consisting of common personal and contact data (art. 83, par. 2, lett. g of the Regulation).

In an overall perspective of necessary balancing between the rights of the data subjects and the freedom of enterprise, it is necessary to prudently evaluate the aforementioned criteria, also in order to limit the economic impact of the sanction.

Therefore - based on the complex of the elements indicated above, considering the overall assessment of the economic capacity of the Company, as per the latest financial statement for the year 2022 - it is believed that an administrative sanction of a payment of the sum of €10,000.00 (ten thousand/00) should be applied to Casatua, equal to 0.05% of the maximum administrative fine of €20 million.

In the case in question, it is also believed that the accessory sanction of publication on the Authority's website of this provision should be applied, as provided for by art. 166, par. 7, of the Code and art. 16 of the Regulation of the Authority no. 1/2019.

In implementation of the principles of art. 83 of the Regulation, the imposition of this accessory sanction appears proportionate in relation to the severity and particular disvalue of the conduct subject to censure, with specific reference to the absence of adequate controls on the lists acquired from third parties and on the related obligations of information and consent of the data subjects for the processing of data for promotional purposes. This is regardless of the fact that the unwanted contacts made actually involved a lower number of acquired numbers (2,000 out of 5,000 numbers provided by Realmaps) since even the mere collection of the data described above, although not usable, constitutes processing carried out in violation of the data protection regulations, resulting in a significant disvalue assessment of the conduct itself.

It is reminded that, pursuant to art. 170 of the Code, anyone who, being obliged, does not comply with this prohibition provision on processing is punished with imprisonment from three months to two years and that, in case of non-compliance with the same provision, the sanction referred to in art. 83, par. 5, lett. e) of the Regulation is also applied administratively.

Finally, the prerequisites of art. 17 of Regulation no. 1/2019 concerning internal procedures of external relevance, aimed at carrying out the tasks and exercising the powers delegated to the Authority, for the annotation of the violations detected here in the internal register of the Authority, as provided for by art. 57, par. 1, lett. u) of the Regulation, are present.

ALL OF THE ABOVE HAVING BEEN STATED, THE AUTHORITY

pursuant to art. 57, par. 1, lett. f), of the Regulation, declares the processing described in the terms of the motivation carried out by Casatua S.r.l., with registered office at via dei Caduti 7, 20044 Arese (MI), VAT number 06461520154, unlawful; consequently:

- a) pursuant to art. 58, par. 2, lett. f) of the Regulation, prohibits any further processing for promotional and commercial purposes carried out through lists, even acquired from third parties (list providers), for which the Company does not have free, specific, and informed consent from the data subjects (arts. 6 and 7 of the Regulation, as well as 130 of the Code);
- b) pursuant to art. 58, par. 2, lett. d), of the Regulation,

Regulation, orders to promptly provide for the deletion of said data, without prejudice to those that must be retained for the fulfillment of a legal obligation or for the defense of a right in judicial proceedings, as well as for any other purpose that does not require informed, free, specific, documented, and unequivocal consent from the data subject;

c) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders Casatua, should it intend to direct promotional activities in the future towards telephone numbers provided by third parties, to adopt suitable procedures aimed at constantly verifying, including through appropriate random checks, that personal data is processed in full compliance with the provisions in this regard (prior acquisition of free, specific, unequivocal, documented, as well as informed, consent from the data subjects for the sending of commercial communications) (arts. 6, 7, and 14 of the Regulation);

d) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders, for the purposes of the information obligation under art. 13 of the Regulation, to provide the data subjects with all the information therein provided, updating the relevant call script;

e) pursuant to art. 58, par. 2, lett. d) of the Regulation, orders to adopt appropriate technical and organizational measures to facilitate the exercise of the rights provided for by the data protection legislation and to satisfy, without unjustified delay, the related requests, including the right to object which may be raised "at any time" by the data subject;

f) pursuant to art. 157 of the Code, orders the aforementioned Company to communicate to the Authority, within thirty days from the notification of this provision, the initiatives undertaken in order to implement the imposed measure; any failure to comply with the provisions of this point may result in the application of the administrative pecuniary sanction provided for by art. 83, par. 5, of the Regulation.

ORDERS

pursuant to art. 58, par. 2, lett. i), of the Regulation, to Casatua S.r.l., in the person of its legal representative, to pay the sum of €10,000.00 (ten thousand) as an administrative pecuniary sanction for the violations indicated in the motivation; it is noted that the offender, pursuant to art. 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an amount equal to half of the imposed sanction.

ORDERS

the aforementioned Company, in the event of failure to settle the dispute pursuant to art. 166, paragraph 8, of the Code, to pay the sum of €10,000.00 (ten thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent executive acts in accordance with art. 27 of law no. 689/1981;

DISPOSES

a) pursuant to arts. 154-bis of the Code and 37 of Regulation no. 1/2019, the publication of this provision as well as, pursuant to art. 166, paragraph 7, of the Code, the publication of this injunction order on the website of the Authority;

b) pursuant to art. 17 of the Regulation of the Authority no. 1/2019, orders the annotation in the internal register of the Authority, provided for by art. 57, par. 1, lett. u) of the Regulation, of the violations and the measures adopted.

Pursuant to art. 78 of Regulation (EU) 2016/679, as well as arts. 152 of the Code and 10 of Legislative Decree 1 September 2011, no. 150, against this provision an appeal may be made to the ordinary judicial authority, with an application filed at the ordinary court of the place where the data controller resides, or, alternatively, at the court of the place of residence of the data subject, within thirty days from the date of communication of the provision itself, or sixty days if the applicant resides abroad.

Rome, March 13, 2025

THE PRESIDENT

Stanzione

THE RAPPORTEUR

Ghiglia

THE SECRETARY GENERAL

Mattei